

EPA Compliance Workshops Don't Reduce Violations

Lessons from “The effect of compliance assistance on pollution discharges and violations of environmental regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026.

Offering polluters free help to follow the rules doesn't make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance workshops found the workshops didn't reduce violations.

BACKGROUND

Environmental enforcement in the U.S. has long centered on penalties: inspect facilities, catch violations, and levy fines. **Compliance assistance** takes a different approach. Rather than punishing facilities that break the rules, regulators help them follow the rules in the first place, through free workshops, guidance, and technical support. The premise is that many violations stem from confusion or limited expertise rather than deliberate corner-cutting. Over the past ten years or so, compliance assistance has become the preferred method for the Environmental Protection Agency (EPA) instead of penalties. Yet **whether the help actually changes behavior had rarely been tested.**

To test this, researchers studied a set of compliance workshops offered to wastewater treatment facilities on Ohio. Hundreds of facilities that had recently been cited for violations volunteered to participate in the workshops, which were rolled out over several months. Researchers had access to detailed records from the Ohio EPA of the facilities' violations and pollution discharges, both before and after the workshops.

WHAT THE STUDY FOUND

THE WORKSHOPS' EFFECT ON VIOLATIONS, MONTH BY MONTH

Source: Ferraro & Shimshack (2026).



Note: The shaded band is the range of statistical uncertainty around each month's estimated effect. Because it always spans “no change,” the workshops had no detectable effect on violations.

Evaluating whether a policy works is difficult when researchers can't randomly choose who receives it or when. For the EPA compliance workshops, facilities decided for themselves whether to attend, and the ones that signed up may already have

been more motivated to reduce violations than the ones that didn't. That motivation is nearly impossible to separate from the effect of the training itself, so **an improvement that follows the workshops is not necessarily proof the workshops caused it**. The only way to know is to compare against a credible benchmark: similar facilities that signed up but had not yet been trained. Because the workshops reached different facilities at different times, the researchers could measure facilities trained early against equally motivated ones trained later.

If the workshops changed behavior, it should show up as a turning point: right after training, violations at trained facilities should fall relative to facilities not yet trained. The figure tracks exactly that, month by month around the workshop. Instead of bending at the moment of training, the line stays flat at zero. **Trained facilities were no less likely to violate than comparable facilities that had not yet been trained.**

TAKEAWAYS

Compliance assistance rests on the idea that facilities break the rules because they don't fully understand them. For these wastewater plants, that wasn't the case — extra training and guidance changed little, a sign that their violations had other roots. **A program that solves a problem facilities don't actually have was never likely to work.**

The stakes are practical, not academic. Buoyed by the apparent success, the EPA had moved to expand the program to other states, spreading an approach that the evidence here says does not work. Expanding an ineffective program only multiplies its cost: wasted money, pollution that is never curbed, and communities that never see cleaner water. The lesson is not that assistance can never help; this is one program, and small benefits can't be ruled out. The point is that **such programs should be rigorously tested before they replace tools already known to work.**